

GUARDIANSHIP OF AVERY & ZADEN MADRIGAL

Case Number: CVPG20-0030814

This matter is on calendar for Annual Review. The annual Confidential Guardianship Status Reports for Avery and Zaden have not been submitted. **The Guardian is ORDERED to appear at today's hearing and submit the Annual Status Report at the time of the hearing. Failure to do so may result in the issuance of an Order to Show Cause why Monetary Sanctions in the amount of \$250.00 should not be ordered for violating the Court's order to appear and to file the report.**

GUARDIANSHIP OF CYILIEGH, JOEY & KENZLIEGH MCCLOUD

Case Number: 24PG-0032725

This matter is on calendar for hearing on further proceedings on a Petition for Appointment of Guardian of Minors, Kenzleigh, Cyiliegh, and Joey McCloud. The Petition was filed by the minor's maternal aunt Lovetta Hemphill and her spouse Austin Hemphill. Letters of Temporary Guardianship issued on December 2, 2024. The Temporary Guardianship's powers are set to expire today unless further extended. The matter is also on calendar for a hearing on a Petition for Appointment of Guardian of Minors filed by paternal aunt Maria McCloud. Letters of Temporary Guardianship were denied pending hearing.

McCloud Petition. At the hearing on February 10, 2025, Ms. McCloud was informed of several defects in her paperwork and was directed to file an Amended Confidential Screening Form, form ICWA-030, and to file and serve the Notice of Hearing and Petition on all required parties. Ms. McCloud has failed to comply with curing any defects in her paperwork as previously noted. There is no proof of service of the Notice of Hearing on the father, temporary guardians, paternal grandparents, or siblings. Insufficient information has been provided to permit the Court to dispense with notice to these parties. The parents must be personally served in order to move forward on the Petition. Prob. Code § 1511(b). All other parties may be served by mail. Prob. Code § 1511(c). There has been no objection filed. If Ms. McCloud intends to move forward with her Petition, she is required to file an ICWA-030 and Amended Confidential Guardianship Screening form.

Hemphill Petition. Petitioners have failed to complete, file, and serve a new Notice of Hearing for today's date. The Court notes the Proof of Unsuccessful Service filed February 24, 2025 showing law enforcement's efforts to serve the father, Joseph McCloud. There is no proof of service of the Notice of Hearing for the father, paternal grandparents, or siblings. Insufficient information has been provided to permit the Court to dispense with notice to these parties. The parents must be personally served in order to move forward on the Petition. Prob. Code § 1511(b). All other parties may be served by mail. Prob. Code § 1511(c). Maria McCloud has filed an objection.

ICWA. Ms. McCloud previously identified that the minors may be members of "Big Valley Band of Pomo Indians- Lake County" and "Quartz Valley Reservation-Siskiyou County," however she failed to file form ICW-030, so the tribe has not been notified. The Hemphill's filed ICWA-030

identified the minors as members of “Quartz Valley Indian Reservation” and notice was provided. Lovetta and Austin Hempfill are ORDERED to complete an Amended ICWA-030 adding the “Big Valley Band of Pomo Indians- Lake County,” to ensure notice is provided to all potentially interested tribes.

This matter is continued to **Monday, April 28, 2025 at 8:30 a.m. in Department 42** for further proceedings on the Petition filed by Lovetta and Austin Hempfill and the Petition filed by Maria McCloud. The Temporary Guardianship is ORDERED to remain in effect until the continued hearing date. All Petitioners are ORDERED to file and serve a new Notice of Hearing, along with a copy of the Petition, for the continued hearing date on the parties identified above. In the alternative, if Petitioners cannot serve the parties identified above, the Court will require a declaration explaining why they cannot be served and the efforts of Petitioners to locate and serve the parties identified, in order to permit the Court to dispense with notice to the parties. **Warning: Failure to properly effect service or provide adequate basis to dispense with service as to the necessary parties will result in denial of the Petition. Notice is preserved. No appearance is necessary on today’s calendar.**

GUARDIANSHIP OF MARYELLA MCCOID

Case Number: CVPG15-0028416

The matter is on calendar for further proceedings regarding an Order to Show Cause re: Sanctions, Status of Filing of Accounting for the Period of November 18, 2015 through November 19, 2023, and Order to Show Cause re: Termination of Guardianship. The Guardians have failed to file an Accounting for the requisite time period. No Status Report has been filed. No response to the Order to Show Cause re: Sanctions and Termination of Guardianship have been filed. **An appearance is necessary on today’s calendar to discuss the status of the Accounting. Warning: Failure to appear on today’s calendar will result in the imposition of sanctions, termination of guardianship, and a referral of this matter to law enforcement and Children Services for investigation.**

GUARDIANSHIP OF MARYELLA MCCOID

Case Number: CVPG15-0028458

This matter is on calendar for further proceedings on an Order to Show Cause re: Termination of Guardianship, Annual Status Review, and Status of Receipt of Confidential Status Report. At the previous hearing on January 13, 2025, the Guardian appeared and provided an explanation for her failure to file the Confidential Guardianship Status Report. The report has still not been submitted. **The Guardian is ORDERED to appear at today’s hearing and submit the Annual Status Report at the time of the hearing. Warning: Failure to appear on today’s calendar will result termination of guardianship and a referral of this matter to law enforcement and Children Services for investigation.**